STANDARD OPERATING PROCEDURE			G-1900	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **06/04/24**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL		RESOURCES N.R.S. 20-501 THROUGH 20-506		
SUBJECT ANTI-BIAS POLICING		CROSS REFERENCE G-2100 COMPLAINT PROCEDURE		

I. Purpose:

The purpose of this policy is to reaffirm the Sarpy County Sheriff's Office commitment to unbiased policing in all encounters between deputy and any person; to reinforce procedures that serve to ensure public confidence and mutual trust through the provision of services in a fair and equitable fashion; and to protect our employees of the Sarpy County Sheriff's Office from unwarranted accusations of misconduct when they act within the dictates of the Sarpy County Sheriff's Office policies and the law. (N.R.S. §20-501).

II. Policy:

Biased policing is a practice that presents a great danger to the fundamental principles of a democratic society. It is abhorrent and cannot be tolerated. No member of the Sarpy County Sheriff's Office shall engage in biased policing. Biased policing shall not be used to justify the investigatory stop of a motor vehicle or the detention of an individual. Deputies should take no action that would constitute a violation of the civil rights of a person. This policy should not inhibit deputies from using their skills as law enforcement officers to detect evidence of criminal activity. Traffic stops made by deputies of the Sarpy County Sheriff's Office shall be based solely on the violation observed and decisions to search a motor vehicle shall be based on the available evidence and the occupants' behavior patterns.

All levels of supervision shall take steps to ensure that members under their command do not practice biased policing. These steps should include clearly stating the Sheriff's Office policy that biased policing shall not be tolerated, the review of enforcement reports with a focus on identifying possible profiling patterns and encouraging appropriate traffic enforcement tactics. Supervisors found to have condoned, encouraged, or ignored patterns of biased policing shall be subject to disciplinary action.

III. Definitions:

A. BIASED POLICING: The selection of an individual(s) for enforcement action based in whole or in part on a trait common to a group, without articulable reasonable suspicion, probable cause, and/or actionable intelligence to support consideration of that trait. This includes, but is not limited to, race, ethnic background, gender, sexual orientation/identity, religion, economic status, age, cultural group, or any other identifiable group.

B. DISPARATE TREATMENT: Differential treatment of persons on the basis of race, color, or national origin.

C. MOTOR VEHICLE STOP: Any stop of a motor vehicle, except at a state weighing station.

IV. Procedure:

A. Sheriff's Office Responsibilities:

1. The Administrative Operations Manager shall aggregate the information provided by deputies and enumerate the total number of motor vehicle stops made by deputies.

2. The Sarpy County Sheriff's Office shall provide to the Nebraska Commission on Law Enforcement and Criminal Justice, in such form as the Commission prescribes, a quarterly summary report of the information recorded pursuant to N.R.S. 20-504 subsection (2). The Administrative Operations Manager shall be responsible for providing the summary reports.

B. Investigating Biased Policing Complaints: Complaints from the public regarding biased policing shall be investigated as described in Standard Operating Procedures (see G-2100 Complaint Procedure). Members of the Sarpy County Sheriff's Office who are found to be conducting stops in violation of this policy shall be subjected to disciplinary action.

C. Preventing Biased Policing Perception:

1. Deputies shall act with courtesy and professionalism at all times while on all stops and contacts.

2. Where feasible, deputies should identify themselves, and inform the person the reason for the traffic stop.

3. Contact with occupants of a traffic stop should continue for only the time which is necessary to meet the objectives of the justification for the traffic stop. If

reasonable delay occurs during the stop, the deputies shall keep the person informed of the reason for the delay.

4. Deputies should try to answer questions posed by the person stopped to the extent that is possible and does not jeopardize officer safety.

D. Reporting Allegations of Biased Policing to the Commission:

1. All allegations of biased policing shall be reported to the Nebraska Commission on Law Enforcement and Criminal Justice. The Sarpy County Sheriff's Office shall provide the following:

a) A copy of each allegation of biased policing received.
b) Written notification of the review and disposition of such allegation.

2. No information revealing the identity of the deputy involved in the stop shall be used, transmitted, or disclosed.

3. No information revealing the identity of the complainant shall be used, transmitted, or disclosed in the form alleging biased policing.

E. Training:

1. Sworn employees of the Sarpy County Sheriff's Office shall receive initial training on prevention of biased policing in the FTO Program and two (2) hours of annual Anti-Bias and Implicit Bias training designed to minimize apparent or actual biased policing. The training shall be documented.

2. All Sheriff's Office non-sworn employees shall receive initial training and annual refresher training on unlawful or improper bias in public safety. The training shall be documented.

F. Administrative Review:

1. At the end of the calendar year the Professional Standards Assistant Commander shall complete a documented annual administrative review of agency practices, including documented complaints and any corrective measures taken.